

23STCV11507 23STCV11507

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Case Number: 23STCV11507 Hearing Date: August 14, 2026 Dept: 224

Serrano v. Newport Property Investments, LLC et al.,

FINAL RULING

Subject to Plaintiff's Counsel filing an Amended MC-350 that makes clear what settlement sum will go to the Minor, Aimee Sarai Ramirez within 5 days from today, the Court GRANTS the Petition. The Court sets an Order to Show Cause Re Proof of Deposit of Funds into an Annuity for November 16, 2026 at 8:30 a.m.

Pursuant to California Rules of Court, rule 7.952(a) "The person petitioning for approval of the compromise of the claim on behalf of the minor or person with a disability and the minor or person with a disability must attend the hearing on the petition unless the court for good cause dispenses with their personal appearance." As the Court heard from Petitioner at today's hearing, there is good cause to dispense with Petitioner's personal appearance at the next hearing scheduled for November 16, 2026 8:30 a.m.

The Court will sign the MC-351 Order approving compromise of claim or action or disposition of proceeds of judgment for Minor or person with a disability.

ANALYSIS

Petition to Approve Compromise of Minor's Claim

Petitioner Brenda Yesenia Serrano Ramirez, guardian ad litem for Claimant Aimee Sarai Ramirez, a minor, petitions the Court to approve the compromise of the pending action on behalf of Claimant. (MC-350.)

There is an order appointing guardian ad litem on file.

No opposition was filed.

Legal Standard:

An enforceable settlement of a minor's claim or that of a person lacking the capacity to make decisions can only be consummated with court approval. (Prob. Code., §§ 2504, 3500, 3600 et seq.; Code Civ. Proc., § 372; see *Pearson v. Sup.Ct.* (2012) 202 Cal.App.4th 1333, 1337.)

"[T]he protective role the court generally assumes in cases involving minors, [is] a role to assure that whatever is done is in the minor's best interests...[I]ts primary concern is whether the compromise is sufficient to provide for the minor's injuries, care and treatment." (*Goldberg v. Sup. Ct.* (1994) 23 Cal.App.4th 1378, 1382.)

A petition for court approval of a compromise or covenant not to sue under Code of Civil Procedure section 372 must comply with California Rules of Court, rules 7.950, 7.951 and 7.952. The petition must be verified by the petitioner and contain a full disclosure of all information that has "any bearing upon the reasonableness" of the compromise or the covenant. (Cal. Rules of Court, rule 7.950.) The person compromising the claim on behalf of the minor or person who lacks capacity, and the represented person, must attend the hearing on compromise of the claim unless the court for good cause dispenses with their personal appearance. (Cal. Rules of Court, rule 7.952.)

Petition

The claimant is Aimee Sarai Ramirez, a 15-year-old minor.

Claimant petitions, by and through guardian ad litem Brenda Yesenia Serrano Ramirez, the court to approve of the compromise that was reached through settlement negotiations.

Petitioner states that the primary injuries Claimant experienced were allergies or allergy symptoms, itchiness, loss of appetite, and emotional distress. These symptoms were treated with medication and rest.

Forms MC-350 and MC-351 have been filed. Proof of service on other parties has been filed.

Notice of settlement has been filed.

Allocation:

Global Settlement: \$ 690,000.00

Minor's Share: \$ 50,000.00

Attorneys' fees (deducted from minor's share): \$ 12,500.00

NET SETTLEMENT AMOUNT (minor's share): \$ 37,500.00

Claimant is to receive a \$50,000 share of the global settlement, minus \$12,500 in attorney's fees, leaving them with a \$37,500 net recovery. The three adult plaintiffs will collectively receive a \$640,000 share of the global settlement, minus \$288,000 in attorney's fees and \$27,876.23 in litigation costs, leaving them with a \$324,123.77 net recovery. However, the MC-350 is inconsistent with this allocation of the global settlement. Item 10(a), which asks for the amount offered to Claimant, states \$690,000 rather than \$50,000. Item 10(b) also attributes the entire \$690,000 to Claimant. Item 11(b)(1), which asks for the amount offered to persons other than

Claimant, states \$690,000 rather than the correct \$640,000 amount to be allocated to the adults. The MC-350 therefore describes \$1,380,000 in combined settlement payments and conflicts with its own \$50,000 summary and the MC-351.

Medical Expenses:

The MC-350 reports no medical expenses, insurance payments, or reimbursements. None of Claimant's settlement will be used to pay medical providers or lienholders.

Item 8 of the MC-350 instructs that a doctor's report containing a diagnosis of the Claimant's injuries and a report of the Claimant's current condition "must be attached to this petition as Attachment 8." No Attachment 8 and no medical records of any kind were submitted.

Item 8a of the MC-350 states that Claimant has recovered completely and there are no permanent injuries.

Costs & Attorney's Fees:

No costs are requested from Claimant's share of the settlement.

Counsel requests \$12,500 in attorney's fees from Claimant's \$50,000 gross recovery, representing a 25-percent contingent fee. A copy of the contingency agreement has been submitted. Counsel's declaration states that counsel has represented Plaintiffs since approximately October 4, 2022, has extensive experience litigating habitability cases, conducted discovery, depositions, expert investigation, and mediation, received no compensation during the representation, and bore the risk of no recovery on the case. Counsel is charging the adults a 45 percent contingency fee but reduced the fee on Claimant's recovery to 25 percent. The requested 25-percent fee appears fair and reasonable because of the contingent nature of the representation, the duration of the representation, the reduction from the 45 percent fee charged to the adult plaintiffs, and the fact that no litigation costs are being deducted from Claimant's share.

Disposition of Settlement

The MC-350 checks item 18b(3) and directs that Claimant's \$37,500 net recovery be used to purchase a structured settlement annuity through Pacific Life & Annuity Services, Inc., with payments to be made by Pacific Life Insurance Company. The proposed payment schedule provides for four annual payments of \$10,534.50, beginning on March 2, 2029 and ending on March 2, 2032. The four guaranteed payments total \$42,138.00 and have a present cost of \$37,500.00.

No MC-355 is required as no part of the balance will be placed in a blocked account.

Disposition:

The \$50,000 gross allocation to Claimant, the requested 25-percent attorney's fee, the resulting \$37,500 net recovery, and the proposed structured annuity disposition of the settlement appear fair and reasonable. The Petition cannot be approved in its present form, however, because the verified MC-350 incorrectly identifies the entire \$690,000 global settlement as both the amount offered to Claimant and the amount offered to the other plaintiffs. The record also lacks the physician's report requested by item 8 of the MC-350 and a report of Claimant's current condition.

At oral argument, the Court heard evidence of the minor's health conditions, and resolution of those health concerns. The Court is satisfied that further medical evidence is not necessary.

Plaintiff's counsel was also ordered to file a corrected MC-350 form, correcting the amount of the settlement directed for distribution for this minor plaintiff. Plaintiff will file that corrected form within 5 days.

Conclusion

Subject to Plaintiff's Counsel filing an Amended MC-350 that makes clear what settlement sum will go to the Minor, Aimee Sarai Ramirez within 5 days from today, the Court GRANTS the Petition. The Court sets an Order to Show Cause Re Proof of Deposit of Funds into an Annuity for November 16, 2026 at 8:30 a.m.

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Moving party to give notice.